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STATE FARM GENERAL

INSURANCE COMPANY v. LENOVO (UNITED STATES) INC.

CASE NO.: 23NWCV02107

HEARING: 09/10/2026 @ 9:30 AM

#8

TENTATIVE ORDER

Cross-Defendant LG Energy Solution, LTD's motion for summary judgment is DENIED.

Moving party to give notice.

Cross-Defendant LG Energy Solution, LTD (Cross-Defendant or LGES) moves for summary judgment as to the complaint.

Background

On July 7, 2023, Plaintiff State Farm General Insurance Company (Plaintiff) filed a subrogation complaint for damages against Defendant Lenovo (United States) Inc. (Lenovo) and Does 1 through 20. This action arises out of a fire at 5723 Castana Avenue, Lakewood, California 90712 (Subject Property), owned by Plaintiff's Insureds, Kurt and Danielle Zielinski. (Complaint, ¶ 6.) The complaint alleges that on "August 4, 2020, as a result of the improper and illegal acts or omissions to act by [Lenovo and Does 1-20]...a fire loss occurred

("fire loss incident")...within the attached garage of the subject property, when the Mr. Zielinski's laptop's ("subject laptop) (Lenovo Thinkpad P51, Serial No. R90QF1YU) four (4) 18650 lithium batteries (subject lithium batteries") manufactured, designed, distributed, inspected, supplied, serviced, sold, installed and/or repaired by [Lenovo and Does 1-20], failed, a fire ensued, spread quickly and resulted in extensive damage." (Complaint, ¶ 7.) The complaint asserts two causes of action: (1) negligence and (2) strict products liability.

On September 21, 2023, Lenovo filed a cross-complaint against Cross-Defendants LG Chem, LTD, LGES, and Roes 1-100. The cross-complaint asserts five causes of action: (1) express indemnity, (2) breach of contract, (3) equitable indemnity, (4) equitable contribution, and (5) declaratory relief.

On December 28, 2023, Lenovo filed two Requests for Dismissals, dismissing (1) the second through fifth causes of action as to LGES and (2) the cross-complaint as to LG Chem, LTD.

On August 4, 2026, this motion first came on for hearing. The Court issued a tentative ruling that Cross-Defendant lacked standing to bring this motion. At Cross-Defendant's request, the Court continued the hearing on this motion and invited supplemental briefing on the issue of standing.

On August 14, 2026, Cross-Defendant filed a supplemental reply. On August 19, 2026, Plaintiff filed a supplemental brief.

Discussion

Cross-Defendant brings this motion for summary judgment against Plaintiff as to the complaint. As far as the record shows, Cross-Defendant is not a party to the complaint. Cross-Defendant is a party to Lenovo's cross-complaint for express indemnity. Cross-Defendant argues that based on a reading of Plaintiff's complaint and pursuant to the law governing summary judgment motions, Cross-Defendant has standing to move for summary judgment as to the complaint.

Doe Designations

First, Cross-Defendant argues that Plaintiff's complaint does assert direct liability claims against Cross-Defendant as a Doe defendant. Cross-Defendant points to the following allegations in the complaint:

Plaintiff is ignorant of the true names and capacities of the defendants sued herein as DOES 1-20, Inclusive, and therefore sues these defendants by fictitious names. Plaintiff will amend this complaint to allege their true names and capacities when ascertained. Plaintiff is informed and believes and thereon alleges that at all times mentioned herein, each of the fictitiously defendants is negligently or otherwise responsible in some manner, along with the defendants, for the occurrences herein alleged, and Plaintiffs damages as herein alleged were legally and proximately caused by that negligence or other wrongful acts and/or omissions and the negligence or other acts and/or omissions of both the named and fictitiously defendants.

(Complaint, ¶ 3.) The complaint alleges that one of Plaintiff's experts found that "[t]his fire's most probable cause was determined to have been a result of a failed (or failed) 18650 lithium battery (batteries) associated with the Lenovo Thinkpad P51, serial no.: R90QF1YU." (Complaint, ¶ 8.) Further, "[t]he fire loss incident described above was caused by the subject laptop's associated failed subject lithium batteries, manufactured, designed, distributed, inspected, supplied, serviced, sold, installed and/or repaired by Defendants, LENOVO (UNITED STATES) INC., and DOES 1-20, Inclusive." (Complaint, ¶ 12.)

Cross-Defendant contends that the allegations of the complaint show that Cross-Defendant is a party as the manufacturer of the batteries. However, as argued by Plaintiff, Cross-Defendant does not show that Plaintiff was obligated to name Cross-Defendant as a Doe defendant.

Cross-Defendant argues that Plaintiff "failed to comply with the statutory requirement to amend its complaint and identify LGES as one Doe defendant," and characterizes it as a "technical error." (Supp. Reply, 2:23-26.) Cross-Defendant cites to two cases which relate to procedural errors in naming fictitious defendants. Cross-Defendant cites to Motor City Sales v. Superior Court (1973) 31 Cal.App.3d 342, 344-45, which addresses "[t]he single issue...whether the statutory requirement that a plaintiff's ignorance of the true name of the defendant must be expressly stated in the complaint or if that requirement may be satisfied by stating the fictitious defendant is 'sued herein pursuant

to the provisions of Section 474. . . .” Cross-Defendant cites Motor City Sales for the proposition that “once the fictitiously name defendant is added properly to the case, it can attack the complaint ‘by way of motion to quash, to strike, to set aside a default, or for summary judgment.’” (Supp. Reply, 3:3-6, citing Motor City Sales, supra, 31 Cal.App.3d at p. 346.) However, Cross-Defendant’s citation omits that Motor City Sales was concerned with a defendant’s ability, once named and served, to challenge the sufficiency of its fictitious designation in a pleading for purposes of establishing a lack of personal jurisdiction. (Id., at p. 344-45.)

In a similar vein, Dieckmann v. Superior Court (1985) 175 Cal.App.3d 345, 349, cited by Cross-Defendant, addresses: “whether the failure to comply with the requirement of section 474 of the Code of Civil Procedure, that a plaintiff ‘must’ state in the complaint that the names of fictitiously named defendants are unknown to him, may be cured by amendment after a defendant’s true name is substituted in place of one of the fictitiously named defendants. A secondary question...is whether a defendant waives such a technical pleading defect by failing to raise promptly an objection to the patent omission and by waiting until the period for joining parties pursuant to section 581a has passed.” As such, both cases address what a defendant, once joined, may do to address defects related to Doe designations in a pleading. Cross-Defendant has neither been named in the pleading nor does it move to challenge its Doe designation. Whether Plaintiff was required to name Cross-Defendant as a party to the main action is not at issue in this motion for summary judgment.

Moreover, Cross-Defendant contends that this purported technical error limited the defenses available to it. The Court notes that procedural mechanisms exist to assert interests or join in an action, none of which are before this Court now or have been before this Court pursuant to the record in this matter.

Code of
Civil Procedure section 437c

Cross-Defendant next argues that the plain language of Code of Civil Procedure section 437c supports its standing. Cross-Defendant recites “[a] party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., § 437c, subd. (a).) This is not

disputed. The issue is that Cross-Defendant is not a party to Plaintiff's complaint. As put by Plaintiff, "[a]s a non-party to the action between State Farm and Lenovo, LGES is considered a 'stranger' to the direct claims between the State Farm and Lenovo." (Supp. Brief, 2:18-20.) Contrary to Cross-Defendant's argument that the Court is reading requirements into this provision, Cross-Defendant's interpretation requires the Court to ignore the term "party" altogether from Code of Civil Procedure section 437c, subdivision (a).

Cross-Defendant then argues that it is deemed adverse to Plaintiff and that this is sufficient for standing. Cross-Defendant cites to *RND Contractors, Inc. v. Superior Court* [RND Contractors] (2025) 112 Cal.App.5th 697, 699 which addressed: "when a defendant moves for summary judgment, but the plaintiff does not oppose the motion, may another party oppose the motion?" The Court of Appeal held "that the party may do so if that party and the defendant are adverse to one another. We further hold that there need not be cross-claims between those parties for them to be adverse to one another." (Ibid.) Notably, *RND Contractors* deals with a defendant who filed cross-claims against a non-party to the complaint who then both opposed a co-defendant's motion for summary judgment against the plaintiffs in the main action. (Id., at p. 699-700.) The trial court refused to consider the cross-complainant and cross-defendant's opposition to the co-defendant's motion for summary judgment against the plaintiff on the grounds that they lacked standing as they had not filed cross-claims against the co-defendant. (Id., at p. 700.) The cross-defendant petitioned for a writ of mandate. (Ibid.) The Court of Appeal found the cross-defendant and cross-complainant to be adverse parties to the plaintiff and thus that the trial court should have considered their opposition. (Id., at p. 706.)

The *RND Contractors* court looked to the Supreme Court of California's ruling in *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843, in which the high court interpreted principal portions of the summary judgment statute. (Id., at p. 703-04.) The *Aguilar* Court noted "[u]nder summary judgment law, any party to an action, whether plaintiff or defendant, 'may move' the court 'for summary judgment' in his favor on a cause of action (i.e., claim) or defense." (*Aguilar*, supra, 25 Cal.4th at p. 843.) The Supreme Court went on the note, in dicta, "[l]ikewise, any adverse party may oppose the motion, and, 'where appropriate,' must present evidence." (Ibid.) Neither *RND Contractors* nor *Aguilar* addresses cross-defendants that are not parties to the main action.

Unlike RND Contractors, Cross-Defendant is not trying to oppose a defendant's motion for summary judgment. Therefore, even if Cross-Defendant establishes that it is an adverse party to Plaintiff, Cross-Defendant does not cite to authority that solely as an adverse party, it may move for summary judgment against Plaintiff. The rest of Cross-Defendant's cited authorities go toward arguing that Lenovo's cross-complaint for indemnity entitles Cross-Defendant to assert defenses which may be made by Lenovo and thus makes Cross-Defendant an adverse party. Without a showing that an adverse party may move for summary judgment, this analysis does not support conferring standing.

In sum, Cross-Defendant does not cite to any authorities establishing that a cross-defendant, who is not a party to a complaint, may move for summary judgment on that complaint.

Accordingly, Cross-Defendant's motion for summary judgment is DENIED based on lack of standing.